

23TRCV01936 23TRCV01936

County: los-angeles

Division: Civil Law and Motion

Department: M

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Case Number: 23TRCV01936 Hearing Date: September 15, 2026 Dept: M

LOS ANGELES SUPERIOR COURT –
SOUTHWEST DISTRICT

Honorable Amy N. Carter Tuesday,
September 15, 2026

Department M Calendar No.

PROCEEDINGS

Michael

Bonetto v. American Honda Motor Company, Inc., et al.

23TRCV01936

1. Michael Bonetto's Motion to Enforce 998 Offer

TENTATIVE RULING

Michael Bonetto's Motion to Enforce
998 Offer is granted.

Background

Plaintiff filed the Complaint on June 15, 2023.

Plaintiff alleges the following facts. Plaintiff alleges that his 2020 Honda Pilot suffers from various defects including transmission defects, electrical defects; infotainment defects; among other defects and/or non-conformities. Plaintiff

set forth causes of action under the Song-Beverly Act and Breach of Implied Warranty.

Motion to Enforce Offer

Code Civ. Proc., § 998 states, in relevant part:

“(b) Not less than 10 days prior to commencement of trial or arbitration (as provided in Section 1281 or 1295) of a dispute to be resolved by arbitration, any party may serve an offer in writing upon any other party to the action to allow judgment to be taken or an award to be entered in accordance with the terms and conditions stated at that time. The written offer shall include a statement of the offer, containing the terms and conditions of the judgment or award, and a provision that allows the accepting party to indicate acceptance of the offer by signing a statement that the offer is accepted. Any acceptance of the offer, whether made on the document containing the offer or on a separate document of acceptance, shall be in writing and shall be signed by counsel for the accepting party or, if not represented by counsel, by the accepting party.

(1) If the offer is accepted, the offer with proof of acceptance shall be filed and the clerk or the judge shall enter judgment accordingly. In the case of an arbitration, the offer with proof of acceptance shall be filed with the arbitrator or arbitrators who shall promptly render an award accordingly.

(2) If the offer is not accepted prior to trial or arbitration or within 30 days after it is made, whichever occurs first, it shall be deemed withdrawn, and cannot be given in evidence upon the trial or arbitration.”

Plaintiff moves for an order to enforce the accepted 998 offer which Plaintiff contends that Defendant now refuses to honor. As noted above, the statutory language mandates entry of judgment by the clerk so long as the statutory requirements are met, and, thus, the entry of judgment is ministerial in nature. The Court does note however that Plaintiff had not previously filed a “proof of acceptance” of the offer with the Court prior to the filing of this motion. However, a motion to enforce settlement may be appropriate when a party refuses to comply with the accepted 998 offer. *Poster v. S. Cal. Rapid Trans. Dist.* (1990) 52 Ca.3d 266.

Here, Defendant served its 998 offer by electronic mail on September 30, 2025. Because the offer was served by electronic mail, this provided an extension of two days to respond to November 1, 2025. (Decl., Gregory Yu, ¶ 4; Plaintiff's Ex. A). However, because November 1, 2025 fell on a Saturday, the time to respond was then extended to November 3, 2025. CCP § 1010.6(a)(3)(B); CCP § 12a(a). Plaintiff timely signed and returned the offer on November 3, 2025. (Decl., Gregory Yu, ¶¶ 5-6; Plaintiff's Exs. B and C).

Thus, the motion to enforce the 998 offer must be granted. Defendant apparently initially refused to comply with the accepted offer based on untimeliness. The opposition, however, presents no such arguments and states that Plaintiff has ignored Defendant's request for documents and the vehicle. These specific terms are not included in the 998 offer and cannot be a basis for denying this motion.

Plaintiff's Motion to Enforce 998 Offer is granted.

Plaintiff is ordered to give notice of this ruling.